

**IN RE: THIRTY TWO THOUSAND DOLLARS (\$32,000.00)
CURRENCY OF THE UNITED STATES**

22CV45789

PETITIONER'S MOTION FOR FORFEITURE JUDGMENT

On March 2, 2021, the Calaveras County Sheriff's Department served a search warrant at 5691 McCauley Road, Valley Springs, Calaveras County, California. A man named Yen-Hsiang Yang was inside the house. During the search, officers found several plastic baggies of US Currency (totaling \$30,800.00) bundled together with colored rubber bands hidden between a mattress and bed frame. On top of the mattress was Yen-Hsiang Yang's wallet along with his Taiwanese passport and international driving permit. There was an additional \$1,200.00 U.S. Currency in Yang's wallet bringing the total amount of U.S. Currency found to \$32,000.00.

On March 2, 2021, Yen-Hsiang Yang was personally served with a Receipt for Seizure of Property, Notice of Seizure and blank Judicial Council Form MC200 "Claim Opposing Forfeiture." The same three documents were also sent to Yen-Hsiang Yang via certified USPS mail on May 30, 2023, along with the Petition for Forfeiture of Property. USPS tracking shows the letter was delivered on June 14, 2023. The same documents were also served on the listed property owner, Sean Hin-Yu Lee, and according to USPS tracking, the documents were delivered on November 9, 2023.

During review of PGE records for 5691 McCauley Road, a PGE account in the name of Jie Long Yu, with listed address of 877 Devonshire Ave., San Leandro, CA 94579, was located. Thereafter, the People mailed the documents to Jie Long Yu and on January 23, 2024, filed proof of service.

The Notice of Forfeiture was published in the Valley Springs News pursuant to Health and Safety Code section 11488.4(e) beginning April 9, 2021 once per week for three (3) consecutive weeks. To date no claims have been filed in this case.

A companion criminal case was filed against Yen-Hsiang Yang in case number 21F8122. (Exhibit K.) On August 17, 2021, Yen-Hsiang Yang's criminal defense attorney informed the Court that Yang had voluntarily deported himself out of the country. A bench warrant was ordered and remains to this day. (Exhibit L.)

Legal Standard and Analysis

Health and Safety Code section 11488.4 sets forth the procedures for forfeiture: subsection (a) provides that the District Attorney shall file petition for forfeiture with the Superior Court of the county in which the defendant has been charged with the underlying offense or in which the property has been seized. Thereafter, the District

Attorney shall make service of process of the notice of the seizure and of the intended forfeiture proceeding, upon any person designated in receipt or who has an interest in the seized property. Subsection (e) provides that when forfeiture action is filed, notice to the general public shall be published once per week for three successive weeks in a newspaper of general circulation in the county where the seizure was made or where the property subject of seizure is located.

The service of the notice starts a thirty (30) day period during which the interested party must file a verified claim for the seized property in the superior court. (Health and Safety Code § 11488.5(a)(1).) If the interested party is not served personally or by mail, the claim must be filed within thirty (30) days of the date of the last publication of notice. (*Ibid.*) If the interested party neglects to file a claim within the statutory period, the court may upon motion declare the property seized or subject to forfeiture. (Health & Safety Code section 11488.5(b)(1).)

The petition must be served on every person designated in a receipt issued for the property seized and every person who has an interest in the property. (Health and Safety Code § 11488.4(c), (j).) The notice must be accompanied by a claim form, with directions for filing and serving the claim. (Health and Safety Code § 11488.4(c).) The Judicial Council has approved a form of claim for opposing forfeiture. (See Judicial Council form MC-200.) In addition to personal service, the notice must be published once a week for three successive weeks in a newspaper of general circulation in the county where the seizure was made or the property located. (Health and Safety Code § 11488.4(e).)

In moving for a default judgment pursuant to this subdivision, the state or local governmental entity must establish a prima facie case in support of its petition for forfeiture. However, there is no requirement for forfeiture that a criminal conviction be obtained in an underlying or related criminal offense. (Health & Safety Code §11488.5(b)(1).)

The People have met their notice requirements by personally serving Mr. Yang, sending notice via U.S. mail to Mr. Yang, Mr. Lee, and Mr. Yu and by publishing the Notice once a week for three successive weeks in a newspaper of general circulation in the county where the seizure was made or the property located. (Health and Safety Code § 11488.4(e).) Neither Defendant, nor any other interested person, has filed a claim for the property.

If no claim is filed in a timely manner, the property may be forfeited by default, on noticed motion, and the prosecution's establishment of a prima facie case in support of the petition for forfeiture. (Health and Safety Code § 11488.5(b)(1).) In order to pursue default, the government must establish some nexus between the seized funds and a narcotics transaction. (*People v. \$47,050* (1993) 17 Cal. App. 4th 1319, 1323.)

Forfeiture is ordered if the prosecution meets its burden of proving that the property is subject to forfeiture. (Health & Saf. Code 11488.5(d)(2).) Here, the People have met their burden to show a prima facie case. The People provided the court with the testimony of Deputy Tyler Seawell who works for the the Calaveras County Sheriff's Department in the Calaveras County Marijuana Enforcement Team (MET). (Declaration of Tyler Seawell ("Seawell Decl.") ¶ 1.) Deputy Seawell is trained and experienced in marijuana investigations. (*Id.* ¶¶ 2-8.) Deputy Seawell avers that in February of 2021, he obtained a search warrant for PGE records at the Property, which records showed that the Property was using an average of 1,205.04 kWh per day. (*Id.* ¶ 9.) This is the same amount used by the average California home in two months. (*Ibid.*) Upon the search of the Property, the police discovered 2,511 marijuana plants with an estimated street value of \$4,143,500.00. (*Id.* ¶ 13.) Deputy Seawell avers that "[b]ased upon the large amount of marijuana being cultivated, the sophisticated cultivation operation, and its high dollar value, it is my Opinion that the marijuana was being grown and possessed for sale, not personal use." (*Id.* ¶ 16.)

Based on the foregoing, the court **GRANTS** the Motion and orders that Respondent's money at issue in this Petition is forfeited.

The Clerk shall provide notice of this Ruling to the parties forthwith. The Court will sign the submitted proposed formal Order.

PAUL v DHALIWAL

23CV46672

PLAINTIFF'S MOTION TO COMPEL PRODUCTION OF DOCUMENTS; PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES – SET ONE; REQUEST FOR SANCTIONS

Plaintiff, Heather S. Paul ("Paul") on her own behalf and behalf of all other Subway employees, filed the Class Action Complaint for failure to pay minimum wages, provide rest and lunch periods, maintain accurate wage statements, pay wages upon termination, reimburse expenses, theft, conversion, unfair employment competition, and Private Attorney General Action ("PAGA") against Defendant Jagiwan S. Dhaliwal dba Subway Sandwiches and Wraps and Subway Dhaliwal Arnold ("Defendant"). Plaintiff served discovery and has now filed motions to compel responses to requests for production of documents and further responses to special interrogatories. The motions are similar in form and substance and accordingly, the court addresses the motions in tandem. Plaintiff

I. Facts and Procedural Background

Plaintiff worked as a sandwich artist/crew member for Defendant's Subway restaurant located at 51 N. Main Street, Angels Camp, California 95222. Plaintiff alleges that Defendant additionally owns Subway restaurants in Arnold and Jackson. Plaintiff brings this action on behalf of herself and others similarly situated in a potential class action, with the class defined as:

All current and former hourly, non-exempt employees of Defendant in California at any time during the period commencing on the date that is four (4) years prior to the filing of this Complaint and continuing through the present date (the "Class Period")."

(b) "All hourly, non-exempt employees of Defendant in California who left the employ of Defendant at any time during the period commencing on the date that is within one (1) year prior to the filing of this Complaint and continuing through the present date (the "Class Period")